

PART I: Politics of New Provinces in Pakistan — A Historical Analysis

1. Introduction

- Pakistan established as a **federal state**, but faced challenges due to **centralized control**.
 - After **1971 secession of East Pakistan**, the centralized system remained, leading to:
 - Provincial disharmony.
 - Uneven resource distribution.
 - Marginalization of sub-national identities.
 - Five initial ethnic/regional identities: **Baloch, Bengali, Punjabi, Pashtoon, Sindhi**.
 - Later, **Saraikis of South Punjab** and **Hazaras of KP** emerged as distinct ethno-regional groups.
 - **Demand for new provinces** arose due to:
 - Political, economic, and social disparities.
 - Desire for self-recognition and autonomy.
-

2. Background & Constitutional Context

- **18th Constitutional Amendment (2010)** gave more provincial autonomy.
 - Yet, it **failed to ensure socio-political assimilation** of diverse ethnic identities (Saraikis, Hazaras, Mohajirs, Pashtoons, etc.).
 - **Demand for new provinces** intensified, especially after renaming of **NWFP → KP**.
 - **Objective of study:**
 - Examine historical demands for new provinces.
 - Explore roles of political parties.
 - Review constitutional procedures for new province creation.
-

3. Federalism and Ethnic Identities in Pakistan

- Over-centralized federal structure caused repeated crises.
 - Sub-national identities felt **political and economic exclusion**.
 - Provinces like **Punjab, KP, Sindh**, and **Balochistan** exhibit unique ethnic compositions:
 - **Punjab:** Saraiki population in the south.
 - **KP:** Pashtoons (majority), Hazaras (minority).
 - **Sindh:** Sindhis, Mohajirs, Baloch.
 - **Balochistan:** Baloch, Pashtoons.
-

4. Major Ethnic Groups Demanding New Provinces

a. Saraiki Province (South Punjab)

- Saraikis emerged as distinct group demanding **separate province** from Punjab.
- Reasons:
 - Economic backwardness.
 - Uneven development and representation.
- Early attempts:
 - 1970: Demand for **Saraikistan Province** (Langah, 2011).
 - Proposed districts: **Multan, Bahawalpur, Dera Ghazi Khan, Layyah, Muzaffargarh, etc.**
- Core argument: socio-economic disparities and linguistic identity.
- Supported by various nationalist movements and parties.

b. Bahawalpur Province

- Historical princely state, merged into West Pakistan in 1955.
- After One Unit's dissolution (1970), residents demanded restoration of Bahawalpur province.
- Two viewpoints:
 1. **Restorationists:** wanted Bahawalpur restored as it was.

2. **Saraikists:** wanted inclusion in larger Saraiki province.

- Movements and parties: **Bahawalpur Awami Party, Bahawalpur National Awami Party.**
- Ethnic composition: Majority Punjabi & Saraiki, minority Urdu-speaking.
- Several resolutions passed by **Punjab and National Assemblies (2012–2014)** demanding creation.

c. Hazara Province (in KP)

- Originated after **NWFP renamed as KP in 2010.**
- **Hazara community** (Hindko-speaking) felt neglected.
- Demands led to protests (Hazara Tehreek).
- Reasons:
 - Linguistic & cultural differences with Pashtoons.
 - Economic grievances and representation concerns.
- **Hazara Democratic Party & Hazara Province Movement** led activism.
- Ethnic composition: Predominantly Hindko speakers; minority Pashtoons.

d. Mohajir Province (in Sindh)

- **Mohajirs** (Urdu-speaking migrants) felt excluded politically.
- **MQM** demanded separate province in **urban Sindh (Karachi, Hyderabad).**
- 2012: MQM submitted **constitutional amendment bill** for two new provinces in Punjab and Sindh.
- Proposed referendum for creation of new provinces.
- Aim: address administrative, ethnic, and representation issues.

e. Pashtoon Province (Northern Balochistan)

- Pashtoons in northern Balochistan demanded merger with KP or creation of new province “**Afghania.**”
- Supported by **Pashtoonkhwa Milli Awami Party (PkMAP).**
- Motivation: ethnic unity and administrative ease.

5. Political Parties' Role in New Province Movement

a. Pakistan Peoples Party (PPP)

- Supported Saraiki province to gain southern Punjab vote bank.
- Formed **Constitutional Committee (2012)** on new provinces.
- Proposed **Bahawalpur–Janobi Punjab province** with Bahawalpur as capital.
- Aim: political advantage and regional inclusion.

b. Pakistan Muslim League – Nawaz (PML-N)

- Supported Bahawalpur restoration.
- Opposed dividing Punjab without consensus.
- Pushed resolutions in **Punjab Assembly (2012)** supporting Bahawalpur province.

c. Muttahida Qaumi Movement (MQM)

- Proposed **constitutional amendment bill (2012)** for new provinces in Punjab and Sindh.
- Aimed to give autonomy to South Punjab and Hazara.
- Advocated referendum for provincial division.

d. Pakistan Tehreek-e-Insaf (PTI)

- Supported **administrative decentralization** in Punjab.
- Promised **South Punjab province**; initiated **South Punjab Secretariat**.
- Attempted but failed to pass formal division bill.

e. Bahawalpur Awami Party (BAP)

- Formed in 2018 focusing on **restoration of Bahawalpur province**.
- Organized protests and political campaigns.
- Claimed majority in Bahawalpur supported restoration.

6. Constitutional Provisions for Creating New Provinces

- Governed by **Article 239(4)** of the Constitution of Pakistan (1973):
 - Requires **two-thirds majority** in both the **National Assembly** and **concerned Provincial Assembly**.
 - Federal Parliament may establish commission to report on boundaries and feasibility.
 - **2012 Parliament Resolution:** supported creation of new provinces but process halted.
 - **Legal hurdles:** No clear administrative or financial framework for new provinces.
-

7. Key Findings and Conclusion

- Pakistan's provincial division is **politically sensitive** but can:
 - Improve governance and service delivery.
 - Reduce ethnic and economic disparities.
 - Division of Punjab into two provinces could enhance **representation and efficiency**.
 - Obstacles:
 - Political rivalry and bureaucratic control.
 - Ambiguity in constitutional process.
 - **Overall conclusion:**
 - Creating new provinces could strengthen **federalism, regional equity, and national integration**.
 - Must be approached through **objective, constitutional, and consensual mechanisms**.
-

PART II: Provincial Local Government Systems of Pakistan — A Comparative Perspective

1. Introduction

- Effective local government = key for democracy and service delivery.

- 18th Amendment (2010) empowered provinces and obligated them to create local governments.
 - **Article 140-A:**
 - Each province must establish elected local governments.
 - Elections to be conducted by **Election Commission of Pakistan**.
 - **Article 32:** ensures special representation for peasants, workers, and women.
-

2. Evolution of Local Government in Pakistan

a. Colonial Period

- British introduced local government for administrative convenience.
- Created **urban-rural divide**:
 - Urban → municipal committees.
 - Rural → district councils under bureaucracy.
- Deputy Commissioner was main authority.

b. Early Independence Period

- Inherited British system; provincial governments retained control.
- No real autonomy for local bodies.
- **Basic Democracies Order (1959):**
 - Introduced by **Ayub Khan**.
 - Four-tiered system; used to legitimize military rule.

c. Bhutto Era (1970s)

- **People's Local Government Ordinance (1972, 1975)** — never implemented.
- Aim: replace bureaucracy with elected representatives.

d. Zia-ul-Haq Era (1979 Ordinance)

- Reintroduced local governments;
- Established **Town, Municipal, District, and Metropolitan Corporations**.

- Elections held; but bureaucracy retained influence.

e. Musharraf Era (2001 Ordinance)

- **Devolution Plan (2001):**
 - Established three-tier system:
 - Union Council
 - Tehsil/Town Municipal Administration
 - District Government
 - Devolved administrative and financial powers to local level.
 - Created **Provincial Finance Commission (PFC)** for fiscal transfers.
 - Replaced Deputy Commissioners with elected **Nazims**.

3. Comparative Structure of Provincial LG Systems

Province	Act	Urban Structure	Rural Structure
Punjab (2013)	Metropolitan & Municipal Corporations → Urban Union Councils → Municipal Committees	District Councils → Union Councils → District Health & Education Authorities	
Sindh (2013)	Metropolitan/Municipal Corporations → Union Committees/Town Committees → Municipal Committees	District Councils → Union Councils	
Balochistan (2010)	Metropolitan/Municipal Corporations → Municipal Committees	District Councils → Union Councils	
Khyber Pakhtunkhwa (2013)	District Council → Tehsil Council → Neighborhood & Village Councils	Same structure, fully devolved	

4. Electoral Representation

- **Elections held at lowest tier in all provinces** on party basis.
 - Term limits:
 - KPK: 4 years
 - Punjab: 5 years
 - Sindh: 4 years
 - Balochistan: 4 years
 - Population coverage of lowest tier:
 - KPK: 2,000–10,000 (Village/Neighborhood)
 - Punjab: Urban >20,000 / Rural >10,000
 - Sindh: Union Committees (40,000–50,000)
 - Balochistan: Union Councils (1,000–1,500)
-

5. Functional and Administrative Devolution

a. Functional Devolution

- **Punjab:** separates Health & Education functions → District Authorities.
- **KPK:** devolves HR, Planning, Finance, Development fully to District Govt.
- **Sindh & Balochistan:** follow 1979 model — limited devolution.

b. Administrative Authority

- KPK: elected Nazims empowered to inspect and decide local matters.
 - Punjab: Chief Officer supervises local governments; Principal Accounting Officer role.
 - Sindh: Mayor and Chairmen have limited powers under provincial oversight.
 - Balochistan: provincial government retains inspection and directive powers.
-

6. Supervision and Inter-Governmental Relations

Function	Punjab	Sindh	Balochistan	KPK
Disbursement of Funds	Punjab Finance Commission	Provincial Finance Commission	Local Councils Grants Committee	Provincial Finance Commission
Administrative Services	Local Government Board	Local Government Board	Local Government Board	Local Service Commission
Inter-Governmental Matters	Local Govt Commission	Local Govt Commission	Divisional Coordination Committee	Local Govt Commission

- Provincial governments retain dismissal and appointment powers for LG heads.
- CM can suspend local governments for 90 days (Punjab & Sindh).

7. Fiscal Devolution

- Revenue from **taxes, fees, fines, tolls, grants, licenses**.
- Provincial Finance Commissions allocate funds to local bodies.
- **KPK:** ensures minimum 10% of development funds go to local govts.
- Other provinces lack fixed percentage formulas.
- Fiscal factors considered: population, backwardness, performance.

8. Local Government Finances

Aspect	Punjab	KPK	Sindh	Balochistan
Representation in Finance Commission	None	Elected Nazims of District & Tehsil	Mayors & Chairmen nominated by Province	None

Aspect	Punjab	KPK	Sindh	Balochistan
Audit	Auditor General of Pakistan	Internal & Auditor General	Provincial Authority	Director Local Fund Audit
Budget	Prepared by Local Bodies	Same	Same	Approved via Divisional Coordination Committee

- Local govts have limited taxing powers.
- Financial dependency on provincial allocations remains high.

9. Concluding Thoughts

- Local govts enhance democracy and accountability.
- Problems:
 - Excessive provincial control.
 - Weak fiscal autonomy.
 - Politicization of local institutions.
- Effective local democracy needs:
 - Predictable finances.
 - Independent authority.
 - Mechanisms for citizen participation.
- Devolution can strengthen democracy, efficiency, and service delivery if institutionalized properly.